

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIRANDA DEVLIN,

Petitioner

VS.

TAD DEVLIN,

Respondent

) Case Number: FDI-21-794941

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
CHILD SUPPORT, FAMILY COURT 3044 PRESUMPTION; REQUEST FOR ORDER FOR
CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME), CHILD SUPPORT, FAMILY
COURT 3044 PRESUMPTION

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Miranda Devlin (Mother) and Respondent Tad Devlin (Father). They share two minor children: Chloe (DOB: 4/25/12) and Paige (DOB: 4/15/26).
- 2) Mother had parenting time with the minor children every Tuesday after school until Wednesday morning drop off at school and every other weekend from Friday after school until Sunday at 5:00 PM. See Findings and Order After Hearing filed 11/21/24.
- 3) On 11/27/24, a Domestic Violence Restraining Order (DVRO) was granted after a 6-day trial. Father is the protected party, and Mother is the restrained party. The minor children are not listed as protected parties. Father was awarded sole legal and sole physical custody.

- 1 4) On 10/8/25, Mother filed a Request for Order seeking: (a) a finding that Mother overcame the
2 Family Code section 3044 presumption against joint custody; (b) joint legal and physical custody;
3 (c) modification of the parenting time orders to increase her time an extra day during the week
4 and one extra night every other weekend; (c) modification of the 2/11/25 child support orders to
5 guideline child support. Mother attached a proposed holiday schedule to her Request for Order.
6 5) On 10/8/25, Mother filed an Income and Expense Declaration.
7 6) On 11/17/25, the parties appeared for Readiness Hearing. The matter was scheduled for
8 mediation with Family Court Services on 1/6/26 and regular hearing in Dept. 403 on 2/3/26.
9 7) On 11/5/25, Father filed a Responsive Declaration in opposition to Mother's Request for Order
10 asking the Court to deny Mother's requested relief. However, Father states that he is agreeable to
11 Mother having the minor children an extra weeknight (Tuesday and Wednesday night until
12 Thursday morning school drop-off) on weekends that Mother does not have parenting time.
13 8) On 11/5/25, Father filed an Income and Expense Declaration.
14 9) On 11/12/25, Mother filed a Reply Declaration.
15 10) On 1/6/26, the parties attended mediation but did not reach an agreement.
16 a. Mother requests:
17 i. Parenting time every Tuesday afterschool until Thursday morning drop-off at
18 school;
19 ii. Parenting time every other weekend Friday afterschool through Monday morning
20 drop off at school; and
21 iii. A shared holiday schedule with holiday exchanges to take place at 5 PM.
22 b. Father requests:
23 i. The current parenting schedule to remain in place (i.e., Mother to have the
24 children every Tuesday afterschool until Wednesday morning drop off at school
25 and every other weekend Friday afterschool until Sunday at 5 PM).
26 ii. No shared holiday schedule at this time.
27 11) On 1/27/26, Mother filed a supplemental declaration in support of her position.
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1 12) On 2/3/26, the parties appeared at hearing, and Father requested a long-cause (i.e., evidentiary)
2 hearing. The Court did not adopt any portion of its Tentative Ruling issued for the 2/3/26 hearing
3 and set all pending issues for long-cause hearing on 5/21/26.

4 13) On 5/21/26, the parties appeared at the long-cause hearing and the Court determined Mother
5 rebutted the Family Code section 3044 presumption against joint custody. Therefore, the Court
6 granted Mother's request for joint legal custody. The Court increased Mother's parenting time
7 with the minor children from Tuesdays pick-up afterschool to Thursday drop off at school with
8 alternate weekends (which appears to be a 2/2/5 schedule). The Court ordered the parties to
9 attend FCS Mediation on 6/18/26. The Court made various other orders, which have yet to be
10 memorialized in a Findings and Order After Hearing. The Court continued the matter to 6/30/26
11 for issues related to child support, summer, and vacation schedule, and make-up time.

12 14) On 6/18/26, the parties attended FCS Mediation and were able to reach a partial agreement.

13 **B. Findings and Order**

14 1) Child Custody and Visitation: This Court has jurisdiction to make child custody orders in this
15 case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this
16 order may subject the party in violation to civil or criminal penalties, or both. The country of
17 habitual residence of the minor child(ren) is the United States.

18 2) The Court confirms the orders issued at long-cause hearing regarding custody. The parties shall
19 share joint legal and joint physical custody of the minor children.

20 3) The Court confirms the orders issued at long-cause hearing regarding parenting time. The
21 Court's 2/2/5 parenting time schedule is confirmed: Father has the minor children on Mondays
22 and Tuesdays, Mother has the minor children on Wednesdays and Thursdays, and the parties
23 alternate weekends.

24 4) **The parties are ordered to appear** regarding the outstanding child custody and vitiation issues.

25 5) Financial Matters: Mother's request for modification of child support is GRANTED as a
26 modification of parenting time is a material change in circumstances.

27 6) As such, effective 5/21/26 (i.e., when the Court awarded Mother approximately a 50% timeshare
28 after a long-cause hearing), and in accordance with the XSpouse report attached hereto and
29

1 incorporated herein, Father owes Mother \$3,315 in guideline monthly child support and \$3,863 in
2 guideline temporary monthly spousal support for a total monthly support payment of \$7,178.

3 7) All support payments are due and payable by the 1st of every month commencing 7/1/26.

4 8) Father owes Mother \$9,493.38 in support arrears for the period of 5/21/26 – 6/30/26 (\$2,315.48
5 for May + \$7,178 for June). Father shall pay this balance in full by 7/15/26.

6 9) The XSpouse reports are based on the following findings:

7 a. Per Mother's Income and Expense Declaration filed 10/8/25:

8 i. Mother's average monthly income is \$5,372.

9 ii. Mother pays \$66 in monthly health insurance premiums.

10 iii. Mother pays \$200 in necessary job-related expenses.

11 b. Per Father's Income and Expense Declaration filed 11/5/25:

12 i. Father's average monthly income is \$30,000.

13 ii. Father makes \$1,440 monthly 401(k) contributions.

14 iii. Father receives \$285 in average monthly dividends.

15 iv. Father receives \$2,218 in average monthly rental property income.

16 v. Father pays \$29.94 in monthly health insurance premiums.

17 vi. Father pays \$81 in necessary job-related expenses.

18 10) As and for additional child support, Father shall pay to Mother a percentage of any and all
19 income, compensation, or remuneration earned above Father's \$30,000 in base gross monthly
20 income, as set forth in the Smith/Ostler bonus report attached to the XSpouse report. Additional
21 support shall be paid within 10 days of receipt. Father shall provide at the same time as payment
22 documentation showing the excess gross income received and the calculation providing the basis
23 for Smith/Ostler support owed.

24 11) All prior orders not in conflict with this order shall remain in full force and effect, including, but
25 not limited to the Court's 2/11/25 orders regarding a spousal support deduction, child-support
26 add-ons, and private school tuition.
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2026

Fixed Shares

	Father	Mother
Number of children	2	0
Percent time with NCP Filing status	0.00%	49.00%
Number of exemptions	2	1
Wages and salary	30000	5372
Self employed income	0	0
Other taxable income	2503	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	1440	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	0	66
Other medical expenses	0	0
Property tax expenses	0	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	200
Child care expenses	0	0

Xspouse 2026-1-CA

Monthly Figures 2026

GUIDELINE

Nets (adjusted)

Father	21152
Mother	4055
Total	25207
Addons	0
Guideln CS	3315
S.Clara SS	3863
Total	7178

Support

CS	3260
SS	3798
Total	7058
Saving	185
Releases	-1

Proposed Tactic 9

Monthly Figures Cash Flow

Guideline Proposed

Combined net spendable	25206	25392
Percent change	0%	1%

Father

Payment cost/benefit	-7178	-7084
Net spendable income	13974	14067
Change from guideline	0	93
% of combined spendable	55%	55%
% of saving over guideline	0%	50%
Total taxes	11351	11378
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	17029	17029

Mother

Payment cost/benefit	7178	7270
Net spendable income	11232	11324
Change from guideline	0	92
% of combined spendable	45%	45%
% of saving over guideline	0%	50%
Total taxes	1051	839
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	4096	4096

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: **ON**

Per Child Information

DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	51 - 49	0	0	0 Father	3,315 Father	3,315 Father
0000-00-00	51 - 49	0	0	0 Father	1,243 Father	1,243 Father
0000-00-00	51 - 49	0	0	0 Father	2,072 Father	2,072 Father

OFF

(0 = default steps)

Bonus amounts from: 0 to: 200000 Step: 2500

Father's Bonus	Additional Cost to Father				Total CS	Total SS (adjusted)
	Child Support % of bonus	\$	Spousal Support % of bonus	\$		
0	0.00	0	0.00	0	0	0
2500	7.54	189	12.92	323	3504	4186
5000	7.51	375	12.95	647	3690	4510
7500	7.47	560	12.98	973	3875	4836
10000	7.44	744	13.00	1300	4059	5163
12500	7.41	927	13.03	1628	4242	5491
15000	7.39	1108	13.05	1957	4423	5820
17500	7.36	1288	13.07	2287	4603	6150
20000	7.34	1468	13.09	2618	4783	6481
22500	7.32	1646	13.11	2949	4961	6812
25000	7.30	1824	13.12	3281	5139	7144
27500	7.28	2001	13.14	3613	5316	7476
30000	7.26	2178	13.15	3946	5493	7809
32500	7.24	2354	13.17	4280	5669	8142
35000	7.23	2529	13.18	4613	5844	8476
37500	7.21	2704	13.19	4947	6019	8810
40000	7.20	2879	13.20	5282	6194	9144
42500	7.18	3053	13.21	5616	6368	9479
45000	7.17	3227	13.22	5951	6542	9814
47500	7.16	3400	13.23	6286	6715	10149
50000	7.15	3573	13.24	6621	6888	10484
52500	7.14	3746	13.25	6957	7061	10820
55000	7.12	3919	13.26	7293	7234	11155
57500	7.11	4091	13.27	7629	7406	11491
60000	7.10	4263	13.27	7965	7578	11827
62500	7.10	4434	13.28	8301	7750	12164
65000	7.09	4606	13.29	8637	7921	12500
67500	7.08	4777	13.29	8974	8092	12836
70000	7.07	4948	13.30	9310	8263	13173
72500	7.06	5119	13.31	9647	8434	13510
75000	7.05	5290	13.31	9984	8605	13846
77500	7.05	5461	13.32	10320	8776	14183
80000	7.04	5631	13.32	10657	8946	14520
82500	7.03	5801	13.33	10994	9116	14857
85000	7.03	5972	13.33	11331	9287	15194
87500	7.02	6142	13.34	11668	9457	15531
90000	7.01	6311	13.34	12005	9626	15868
92500	7.01	6481	13.34	12343	9796	16205
95000	7.00	6651	13.35	12680	9966	16543
97500	7.00	6820	13.35	13017	10135	16880
100000	6.99	6990	13.35	13354	10305	17217

Cost is an increase in support paid or a decrease in support received by this spouse

R = recipient of support

Bonus income may reverse direction of CS and/or SS

OFF

Bonus amounts from: 0 to: 200000 Step: 2500 (0 = default steps)

Father's Bonus	Additional Cost to Father				Total CS	Total SS (adjusted)
	Child Support % of bonus	\$	Spousal Support % of bonus	\$		
100000	6.99	6990	13.35	13354	10305	17217
102500	6.98	7159	13.36	13692	10474	17554
105000	6.98	7328	13.36	14029	10643	17892
107500	6.97	7497	13.36	14366	10812	18229
110000	6.97	7666	13.37	14704	10981	18567
112500	6.96	7835	13.37	15041	11150	18904
115000	6.96	8004	13.37	15379	11319	19241
117500	6.96	8172	13.38	15716	11487	19579
120000	6.95	8341	13.38	16054	11656	19916
122500	6.95	8510	13.38	16391	11825	20254
125000	6.94	8678	13.38	16729	11993	20591
127500	6.94	8846	13.39	17066	12161	20929
130000	6.93	9015	13.39	17404	12330	21266
132500	6.93	9183	13.39	17741	12498	21604
135000	6.93	9351	13.39	18079	12666	21941
137500	6.92	9519	13.39	18416	12834	22279
140000	6.92	9687	13.40	18754	13002	22616
142500	6.92	9855	13.40	19091	13170	22954
145000	6.91	10023	13.40	19429	13338	23291
147500	6.91	10191	13.40	19766	13506	23629
150000	6.91	10359	13.40	20103	13674	23966
152500	6.90	10527	13.40	20441	13842	24304
155000	6.90	10694	13.41	20778	14009	24641
157500	6.90	10862	13.41	21116	14177	24979
160000	6.89	11030	13.41	21453	14345	25316
162500	6.89	11197	13.41	21791	14512	25653
165000	6.89	11365	13.41	22128	14680	25991
167500	6.88	11532	13.41	22465	14847	26328
170000	6.88	11699	13.41	22803	15014	26666
172500	6.88	11867	13.41	23140	15182	27003
175000	6.88	12034	13.42	23478	15349	27340
177500	6.87	12201	13.42	23815	15516	27678
180000	6.87	12369	13.42	24152	15684	28015
182500	6.87	12536	13.42	24490	15851	28352
185000	6.87	12703	13.42	24827	16018	28690
187500	6.86	12870	13.42	25164	16185	29027
190000	6.86	13037	13.42	25501	16352	29364
192500	6.86	13204	13.42	25839	16519	29701
195000	6.86	13371	13.42	26176	16686	30039
197500	6.85	13538	13.42	26513	16853	30376
200000	6.85	13705	13.43	26850	17020	30713

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